



Pakistan Act 1974

1974 CHAPTER 34

An Act to amend the Pakistan Act 1973 so as to extend the voting rights of certain persons who, by virtue of that Act, ceased to be British subjects.

[31st July 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following paragraph and subsection shall be inserted at the end of section 3(5) of the Pakistan Act 1973 (by which a of voting person who, by virtue of section 1(1) of that Act, ceased to be rights. a British subject is to be treated as a British subject for the 1973 c. 48. purpose of voting at certain elections)—

“(c) if on the qualifying date for a parliamentary or local government election held within the period of twelve months beginning with 16th February in a year to which this paragraph applies—

(i) he is awaiting determination of an application received before 1st September 1974 for his registration as a citizen of the United Kingdom and Colonies, and

(ii) where the application was made under section 5A of the British Nationality Act 1948, or under 1948 c. 56. section 6(1) thereof as modified by Schedule 1 to the Immigration Act 1971, he was, throughout the period 1971 c. 77. of five years ending on 31st August 1974 ordinarily resident in the United Kingdom,

shall be treated as a British subject for the purposes of any election at which a register of parliamentary

electors or local government electors published in that year is used.

(5A) Paragraph (c) of subsection (5) above applies to the year 1975 and any subsequent year, not being later than such year as the Secretary of State may specify in an order (made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament) as the final year to which that paragraph is to apply."

Minor
amendments
and repeals.
S.I. 1974
No. 648.
S.I. 1969
No. 904.
1973 c. 48.

2.—(1) As from 1st April 1974 (the commencement of the Representation of the People Regulations 1974, which replaced the Representation of the People Regulations 1969), in section 3(6) of the Pakistan Act 1973—

(a) for "The Representation of the People Regulations 1969" substitute "The Representation of the People Regulations 1974"; and

(b) for "regulation 23(1)" substitute "regulation 24(1)".

(2) The following spent provisions of the Pakistan Act 1973 are hereby repealed—

Section 1(1),

Section 3(5)(a),

Section 4(2),

In section 4(4), the words from the beginning to "shall be deleted; but",

Section 5(2), and

Schedule 4.

Short title
and citation.

3.—(1) This Act may be cited as the Pakistan Act 1974.

(2) This Act and the Pakistan Act 1973 may be cited together as the Pakistan Acts 1973 and 1974.